

Court No. - 4

Case :- WRIT - C No. - 36212 of 2019

Petitioner :- Mohd. Qayyum

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shweta Pandey, Punita Pandey

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Bala Krishna Narayana, J.

Hon'ble Vivek Varma, J.

As prayed by learned counsel for the petitioner, put up this case on 14.11.2019.

Order Date :- 11.11.2019

HR

Court No. - 32

Case :- WRIT - C No. - 36212 of 2019

Petitioner :- Mohd. Qayyum

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shweta Pandey,Punita Pandey

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Saurabh Shyam Shamshery,J.

Put up as unlisted on 18.11.2019.

Order Date :- 14.11.2019

A. Dewal

Court No. - 32

Case :- WRIT - C No. - 36212 of 2019

Petitioner :- Mohd. Qayyum

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shweta Pandey, Punita Pandey

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

Heard Ms Shweta Pandey, learned counsel for the petitioner, learned standing counsel for the State respondents and Sri Ajai Upadhyay holding brief of Sri Kapil Dev Singh Rathore, learned counsel for the 2 and 3.

This writ petition has been, inter alia, filed for the following reliefs:

"(i) issue a writ order, rule or direction in the nature of writ of certiorari quashing the R.C. dated 16.9.2019 issued by respondent no.4 (Annexure no. IV).

(ii) issue a writ order, rule or direction in the nature of mandamus directing the respondents concerned not to take any coercive action against the petitioner in [pursuance of recovery notice dated 16.9.2019 issued by respondent no.4 (Annexure no. IV).

(iii) issue any other writ order, rule or direction in favour of the petitioner, as this Hon'ble Court may deem fit and proper under the circumstances of the case, so as to secure the ends of the justice or else, the petitioner shall suffer irreparably.

(iv) award the cost of petition to the petitioner."

At the very outset Sri Ajai Upadhyay holding brief of Sri Kapil Dev Singh Rathore, learned counsel for the electricity department has raised a preliminary objection that the petitioner has got an alternative remedy to ventilate his grievance to file an application as provided under Clause 6.5 of the Electricity Supply Code, 2005 before the competent authority. Learned counsel for the petitioner has not disputed the objection raised by the learned counsel for the Electricity Department.

Taking into consideration the facts and circumstances of the case, we permit the petitioner to file an application under Clause 6.5 of the Electricity Supply code, 2005 before the competent authority within ten days from today. In case such an application is filed the competent authority shall decide the same within four weeks thereafter after affording an opportunity of hearing to the petitioner.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 18.11.2019

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